

fairness and based on CCP § 473. The matter was continued from March 23, 2026 with direction that Empire Bail Bonds personally serve the County of Shasta. An Amended Proof of Service was filed on April 15, 2026 reflecting personal service on “County Counsel’s Office – Charles Pullen” via “Brooke Luther – CEO Assistant, Authorized to Accept.” The CEO is the proper place to serve the County of Shasta. On May 13, 2026, Shasta County Counsel filed an opposition to the motion based on their contention that service was improper. The merits of the motion were not addressed in the opposition. Based upon the amended proofs of service filed on April 15, 2026, the Court deems the matter properly served.

Merits. Penal Code Section 1305(b) requires service of the notice of forfeiture on the bond company and surety. It also provides that the surety shall be released of all obligations if the notice of forfeiture is not mailed. The criminal file indicates the notice of forfeiture was mailed. However, Empire has provided evidence that the notice of forfeiture was never received by either the bond company or surety.

Evid. Code §604 provides: “The effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence, in which case the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption. Nothing in this section shall be construed to prevent the drawing of any inference that may be appropriate.”

In *Coffey v. Shiimoto* (2015) 60 Cal. 4th 1198, 1210, the California Supreme Court cited with approval the following application of Evid. Code §604. “For example, if a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide whether or not the letter was received.” *Ibid.*

Empire has submitted evidence that the notice of forfeiture was never received. The law requires the clerk to mail a copy of the notice of forfeiture to both the surety and bail agent. PC § 1305(b). The declaration is sufficient to overcome the presumption that the letter was received. This is further supported by the Empire’s argument that surety did not have any kind of scan of the document or entry in its database. The Court finds that the bail agent did not actually receive the Notice of Forfeiture.

The motion is **GRANTED**. Empire Bail Bonds, Inc. did not provide a proposed Order as required by Local Rule of Court 5.17(D). Empire Bail Bonds, Inc. is to prepare the Order.

9:00 a.m. – Review Hearings

IN RE EATTOCK

CASE NUMBER: 26PB-0033231

This matter is on calendar for confirmation of deposit. Petitioner filed the Acknowledgment of Receipt and Order and Funds for Deposit in Blocked Account, however, the name and title on the account is listed as “Doug Eattock Guardian for Gemma Lexi Eattock.” The funds in the account belong to the minor and the minor only. The account should be titled in the minor’s name. The Court will require proof that the account was opened for the minor with Doug Eattock listed as the Guardian ad Litem only. The matter is continued to **Monday, June 29, 2026 at 9:00 a.m. in Department 63** for status of blocked account. **No appearance is necessary on today’s calendar.**